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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT (STANLEY MOSK)

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION TO VACATE SANCTIONS** **Hearing:** March 11, 2026 **Time:** 8:30 a.m. **Dept.:** 91

TO DEFENDANT AND THEIR COUNSEL OF RECORD, IF ANY:

Plaintiff, FOX NORMANDIE APARTMENTS, LP, comes before the Court to request that the Defendant's motion be denied with prejudice as DERRICK L. BEVERLY (Defendant or Tenant) has had every opportunity to avoid sanctions, but this current motion and his continued actions demonstrate the need for sanctions in the first instance. This opposition follows:

I. BRIEF STATEMENT OF THE CASE SINCE COURT ADMONISHMENT

Plaintiff has previously documented the procedural posture of the unlawful detainer in detail in its Memorandum of Points and Authorities in support of the initial Sanctions request. If the Court needs a thorough restatement, Plaintiff respectfully requests the Court review the prior Memorandum of Points and Authorities filed on January 9, 2026. Essentially, this case was completed *over three years ago* and Defendant was locked out *over three years ago*. Defendant has nevertheless filed numerous improper and procedurally defective ex parte applications. On October 17, 2025, the Defendant was admonished that continued defective filings would result in an Order

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to Show Cause (OSC) regarding Sanctions. Since then, Defendant has served and/or filed more motions on the following dates:

- October 21, 2025, Defendant was admonished again that future filings may result in OSC,
- November 4, 2025,
- November 13, 2025,
- December 1, 2025,
- December 3, 2025,
- December 11, 2025, at this hearing the Court set the OSC re Sanctions for January 20, 2026,
- December 12, 2025,
- December 19, 2025, and
- December 22, 2025.

Even *after* the Court set an OSC re Sanctions, the Defendant continued to file ex parte paperwork. On January 20, 2026, the Court ruled and granted sanctions against the Defendant reducing the requested amount from $4,605.29 to $2,185.54. Since the granting of Sanctions, the Defendant has filed the following documents in this case:

- 01/26/2026 - Notice OF ERRATA PACKET NOTICE AND PROOF OF SERVICE
- 01/26/2026 - Proof of Service (not Summons and Complaint)
- 01/26/2026 - Notice NOTICE_OF_ERRATA_PACKET_PROOF_OF_SERVICE
- 01/26/2026 - Notice Notice_Of_Errata_Packet_And_Proof_Of_Service_Email_PDF
- 02/02/2026 - Motion to Vacate - UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_,MODIFY_SANCTIONS_ORDER_MEMPRAMDM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE
- 02/13/2026 - Proof of Personal Service
- 02/13/2026 - Notice of Motion

Defendant persists despite his sanctions in filing meritless and nonsensical documents. His proofs of service are disingenuous as he continues to send items via email that have white text fonts hiding the dates he intends to appear at the hearing forcing Plaintiff's office to monitor the Court website for what is actually filed. Plaintiff checks for this now when there are large blank spaces because this is not the first time Defendant has done this, meaning using white text font.

II. ARGUMENT

A. Defendant Deserved the Sanctions Awarded Against Him.

Defendant admits in his moving papers that the present case is a long closed unlawful detainer matter. (Memorandum page 1, lines 16-17). A reasonable person would also acknowledge that the timelines for his motions have therefore also closed. Defendant also admits that his ex parte practice is "procedural imperfect" (Memorandum page 1, lines 20-21), this is disingenuous at best. Defendant's ex parte practice is appalling and does not seem to improve despite the Court's Minute Orders explaining the procedural defects. There are low-cost and no-cost options for the Defendant to seek legal assistance if he wanted to, but he refuses to. Defendant also claims that because he is a self-represented indigent litigant with limited and inconsistent access to technology, internet, and legal resources he should not be sanctioned. (Memorandum page 1, lines 23-27). Apparently, the law somehow does not apply to him. While these facts may sway the Court's determination on another *pro per* Defendant, the argument falls flat with Defendant Beverly as he has a business on the internet that advertises his services and his ability to navigate complex systems. Below is an excerpt from Defendant's Bio from his website:

> Derrick LaMont Beverly is a Propria Persona legal work practitioner, researcher, and advocate. Over the years, I have built an extensive body of work combining legal research, creative advocacy, and public-interest documentation. My professional journey blends grassroots activism, ***self-represented litigation***, and civic education — always grounded in a belief that ordinary people deserve clear access to information and tools for self-empowerment. I bring the perspective of someone who has ***personally navigated complex systems*** — housing, civil rights, healthcare, and administrative processes — and who now dedicates this platform to turning those lived experiences into publicly accessible knowledge. Where others may

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> see barriers, I see opportunities to create new frameworks. ::My Approach:: Transparency & Documentation – Every archive, toolkit, and filing is shared openly, encouraging accountability and collective learning. Accessibility & Education – Materials are written in a way that makes complex issues understandable for the public. Cultural & Metaphysical Awareness – Beyond statutes and codes, I consider the human, cultural, and even spiritual dimensions of law, advocacy, and reform. Creative Advocacy – From microsites to QR-coded campaigns, I integrate modern tools and creative strategies to amplify voices and issues that matter. This is not about providing legal services — it is about building bridges between lived experience, civic systems, and public empowerment. ***Derrick LaMont Beverly curates records and advocates for transparent public access to court documents and exhibits***. [Emphasis added.] https://dlbllclaw.com/about viewed February 26, 2026.

As Defendant puts himself out in the world as a person who navigates complex issues and does legal research, he cannot now throw himself on the Court and try to claim ignorance. Furthermore, his website lacks the same transparency as his moving papers. His website address is dlbllclaw.com, suggesting that there is legal nature to his business. When you do a google search for his website, the marketing and information seems to suggest that legal nature of his competency. A true and correct copy of the google search for Mr. Beverly's website and a print screen of his website is attached as Exhibits A and B respectively and are incorporated by reference.

Even if Defendant did not put himself out as a person who *could* navigate complex issues, he would still be bound by CCP §128.7 which requires unrepresented persons to follow the law for filing and signing documents. The standard is an objective test of reasonableness, including whether "any reasonable attorney would agree that [the claim] is totally and completely without merit." The Plaintiff asserts that this burden has been met as discussed below.

B. Any Reasonable Person Would Agree That Defendant's Motions Are Without Merit Since He Was Put on Notice of Same Through Plaintiff's Written Opposition.

Defendant was informed by Plaintiff that the remedies he has been trying to seek through his ex parties are not available to him. Plaintiff has relayed this through written opposition, as well as our in our Memorandum of Points and Authorities. Defendant should have reviewed Plaintiff's filings, which outlined the relevant law *prior* to filing procedurally defective motions that have no

legal basis under CCP §128.7. Ignorance of the law is no defense.

C. Pro-per Litigants Treated the Same as Attorneys.

Pro-per litigants are treated the same as licensed attorneys. "…[W]e make clear that mere self-representation is not a ground for exceptionally lenient treatment. Except where a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forego attorney representation. [Citations]… A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts and would be unfair to other parties in litigation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.)

Here, the Court should disregard all arguments for the set aside to be granted because Defendant is self-represented. As to the merits of Defendant's various legal arguments, the written opposition is set forth below again for Defendant.

D. **Defendant Is Not Procedurally or Legally Entitled to Any of the Relief He Is Requesting**.

i. Temporary Stay of Enforcement of the Judgement

As previously explained, and argued below, Defendant is not entitled to this because the lockout and Writ of Possession was already returned by the Sheriff (in 2023) as satisfied and possession is not at issue.

ii. Order Enjoining the Plaintiff from Exercising the Writ of Possession

As previously explained, and argued below, Defendant is not entitled to this because the lockout and Writ of Possession was already returned by the Sheriff as satisfied and possession is not at issue.

iii. Order preserving all video and audio for his 473 motion

As previously explained, and argued below, the timeline for a 473 motion has long passed and Defendant's request for the underlying motion would be procedurally defective.

iv. Order waiving any Bond or Undertaking.

At this time there is no valid request or motion pending before the Court which would require a bond or undertaking so it is moot.

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E. Court's Limitation Under Civil Code §918 Has Passed.

The Court only had the ability to stay enforcement of the judgment for 10 days beyond the entry of judgment for appeals. The forty-day ability is long since passed and therefore is not a remedy available to Defendant. Further, the lockout already occurred, as stated herein, so this remedy is also not available to the tenant.

F. Defendant Cannot Have the Default Judgment Set Aside Because a Request For a 473 Motion Should Have Been Filed Within The Six Months of Entry.

Defendant cannot have his default judgment set aside because the default was entered more than six (6) months ago. In fact the judgment was entered <u>*over three years ago*</u>. Under provision of this section, an application for relief from a default judgment taken through mistake, inadvertence, surprise, or excusable neglect must be made within 6 months after default was taken. *Furnival v. Groves* (1957) 317 P.2d 117, 154 Cal.App.2d 846; *McNeill v. Wheat* (1931) 295 P. 105, 111 Cal.App. 79; *Keown v. Trudo* (1925) 234 P. 910, 71 Cal.App. 155; *Hinds v. Superior Court of Los Angeles County* (1924) 223 P. 422, 65 Cal.App. 223.

G. The Court Lacks Jurisdiction in the Underlying Unlawful Detainer to Quash the Writ as Possession Has Already Been Restored.

In *Del Riccio v. Superior Court* (1952) 115 Cal. App. 2nd 29, a writ of execution was executed when the Sheriff levied judgment debtor's bank account. The bank made its return and paid the judgment amount to the Sheriff. Judgment debtor applied to the Court to have the Sheriff return the money. While the Sheriff still had the money, the Court ordered the Sheriff to not pay the judgment creditor and then stayed the matter. The reviewing Court reversed holding that "… the [trial] court could not, by ordering a stay, undo what had already been done so as to deprive the creditor of ownership and use of money collected under the writ." (*Id*. at pg 31.)

Similarly here, the Sheriff has executed on the writ of possession over three years ago, restoring possession of the premises to the Landlord. Consequently, Tenant's personal effects were

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disposed of according to statute[1]. Therefore, the Court has no authority to order its return to the Tenant, or make any other orders, such as setting the judgment aside, handling allegations of personal property, or otherwise restoring the case to the calendar. No matter how many applications the Defendant files, the facts will not change, nor will the lack of jurisdiction

H. Defendant Has Exhausted His Appellate Remedies

Defendant has filed three separate appeals, all of which have been dismissed for failure to prosecute in one way or another. His appeals were untimely when they were filed but the court permitted them to continue. The judgment cannot be attacked through this process anymore.

I. Defendant Already Received Consideration Based Upon His Economic Situation Because the Court Has Already Reduced Counsel's Hourly Rate:

The OSC for Sanctions was not set until *after* six additional defective motions were filed after the Defendant was admonished. Any attorney would have had a sanctions motion filed far earlier and likely a larger sanctions award would have been granted.

The memorandum and points of authority demonstrate that Attorney Merrell is worth her billable rate of $550 per hour on litigation matters. That rate was already reduced in Plaintiff's request to $425 per hour. The Court again reduced the rate cutting the request almost in half based upon the Defendant's status. Given Defendant's egregious behavior and serial filing without any improvement, the sanctions award was more than fair.

Defendant's position as a pro per litigant has already been taken into consideration both in the decision to set the OSC re: Sanctions and the actual award of sanctions, therefore the amount awarded should be upheld.

J. The Sanctions Award Has Not Deterred Defendant's Behavior as He Continues to File Documents with The Court That Would Fail The Standard Set By CCP §128.7.

[1] In Fact, Defendant dragged Plaintiff into Court ex parte on December 18, 2023, seeking return of his personal effects, which has been disposed of earlier that year, as well return of his former unit. Thus, Defendant has been making these same arguments over and over.

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Since the award of sanctions, defendant has continued to file paperwork in this court. He has filed the following documents:

- 01/26/2026 - Notice OF ERRATA PACKET NOTICE AND PROOF OF SERVICE
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- 01/26/2026 - Notice NOTICE_OF_ERRATA_PACKET_PROOF_OF_SERVICE
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Defendant persists despite his sanctions in filing meritless and nonsensical documents. His proofs of service are disingenuous as he continues to send items via email that have white text fonts hiding the dates he intends to appear at the motion forcing Plaintiff's office to monitor the Court website for what is actually filed. Plaintiff checks for this now when there are large blank spaces because this is not the first time Defendant has done this. Plaintiff renews its argument that only contempt of court will prevent this Defendant from filing frivolous documents.

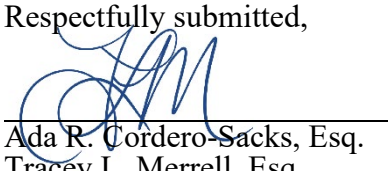
III. CONCLUSION

Plaintiff respectfully requests the court deny the Defendant's motion to vacate or modify the sanctions because the sanctions were warranted. The Defendant should know that what he is doing is improper, and his argument that he is not aware is undercut by the fact he puts himself out in the world as someone to navigate complex issues. Further, his pro-per status was already considered in that he was provided with more opportunities than most to fix his filings, before an OSC was even set and he nonetheless failed to comply. The amount of money awarded was already reduced based

upon his status and should not be set aside or reduced further.

DATED: February 26, 2026

Respectfully submitted,

BY 

Ada R. Cordero-Sacks, Esq.
Tracey L. Merrell, Esq.
Attorneys for Plaintiff

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Founder — Derrick LaMont Beverly

::Background:: Derrick LaMont Beverly is a Propria Persona legal work practitioner, researcher, and advocate. Over the years, I have built an extensive body of work combining legal research, creative advocacy, and public-interest documentation. My professional journey blends grassroots activism, self-represented litigation, and civic education — always grounded in a belief that ordinary people deserve clear access to information and tools for self-empowerment. I bring the perspective of someone who has personally navigated complex systems — housing, civil rights, healthcare, and

administrative processes — and who now dedicates this platform to turning those lived experiences into publicly accessible knowledge. Where others may see barriers, I see opportunities to create new frameworks. ::My Approach:: Transparency & Documentation – Every archive, toolkit, and filing is shared openly, encouraging accountability and collective learning. Accessibility & Education – Materials are written in a way that makes complex issues understandable for the public. Cultural & Metaphysical Awareness – Beyond statutes and codes, I consider the human, cultural, and even spiritual dimensions of law, advocacy, and reform. Creative Advocacy – From microsites to QR-coded campaigns, I integrate modern tools and creative strategies to amplify voices and issues that matter. This is not about providing legal services — it is about building bridges between lived experience, civic systems, and public empowerment. Derrick LaMont Beverly curates records and advocates for transparent public access to court documents and exhibits. (Short bio here — add credentials, experience and background.)

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PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **February 26, 2026,** I served the foregoing document described **PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION TO VACATE SANCTIONS** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1738 N. Las Palmas Avenue
Los Angeles, CA 90028
Email: derniercrilamont@yahoo.com;

[ ] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

[ ] United States Postal Service Next Day Shipping

[ ] [BY PERSONAL SERVICE] I caused our process server to deliver such envelope by hand to the address above.

[X] [ELECTRONIC SERVICE] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: February 26, 2026

Christian Balcazar